

VCU322807 Lopez, Celedonio vs. Barrera, Rodrigo Toledo

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-30

Motion: Plaintiffs' Motion to Compel Initial Responses to (1) Form Interrogatories, (2) Special Interrogatories, and (3) Requests for Production; (4) Plaintiff's Motion to Deem Admissions Admitted; Sanctions

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Re: Lopez, Celedonio vs. Barrera, Rodrigo Toledo

Case No.: VCU322807

Date: July 30, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiffs' Motion to Compel Initial Responses to (1) Form Interrogatories, (2) Special Interrogatories, and (3) Requests for Production; (4) Plaintiff's Motion to Deem Admissions Admitted; Sanctions

Tentative Ruling:

(1), (3) and (4): To find these motions moot by the responses attached to the opposition;

(2) To grant the motion and order responses to Special Interrogatories due no later than thirty (30) days from the date of this hearing;

to impose sanctions on Defendant Barrera in the amount of \$540 due no later than thirty (30) days from the date of this hearing.

Facts Common to (1) through (4)

The Court notes an initial motion filed April 30, 2026 and an amended motion filed May 20, 2026. At the prior hearing on June 2, 2026, the Court continued these motions to this hearing date.

On June 1, 2026, Defendant Barrera appears to have filed an opposition to the motion.

On June 10, 2026, Plaintiff filed a second amended motion to compel these initial responses and deem admissions admitted.

The second amended motion and declaration indicate service of (1) Form Interrogatories, (2) Special Interrogatories, (3) Requests for Production and (4) Requests for Admissions occurred February 26, 2026 by mail.

Plaintiff indicates that, as of the date of the June 10, 2026 filing, no responses have been provided.

The aforementioned June 1, 2026 opposition filed by Defendant Barrera (which the Court will treat as an opposition to the second amended motion), acknowledges the discovery responses were not timely served, but that Defendant "has now prepared verified responses to Plaintiff's Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Admission, Set One; and Request for Production of Documents, Set One."

The opposition attaches, as Attachment A, verified responses to the requests for admissions, form interrogatories, and requests for production. The opposition's attachments, however, do not appear to include responses to the special interrogatories.

On June 30, 2026, Plaintiff filed a declaration confirming responses were served as to Form Interrogatories, Set One; Requests for Admission, Set One; and Request for Production of Documents, Set One. However, it appears no responses to Special Interrogatories have been served.

Authority and Analysis

(1), (3) and (4) - Form Interrogatories, Requests for Production and Requests for Admissions

The Court agrees that no motion to compel initial responses now lies as to the (1) Form Interrogatories, (3) Requests for Production and (4) Requests for Admissions, as Defendant Barrera appears to have provided responses thereto.

These motions are rendered moot by the responses.

(2) – Special Interrogatories

As noted above, no verified responses to special interrogatories appear to be provided in the opposition or otherwise served on Plaintiff.

Based on Defendant's failure to respond to the first set special interrogatories, the Court orders under, Code of Civil Procedure section 2030.290(a), that Defendant Barrera provide full and complete verified responses without objection to Plaintiff's first set of special interrogatories, within thirty (30) days after the hearing on these motions.

Sanctions

Plaintiff requests \$840 in sanctions, consisting of \$240 in filing fees (\$60 x 4 motions) and \$600 in attorneys fees (\$300 x 2 hours.)

The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion to compel initial responses and deem admissions admitted is that the other party failed to respond within the

designated time

Under Code of Civil Procedure sections 2033.280(c) (Admissions), 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court orders sanctions against Defendant Barrera in the amount of \$540, consisting of 1 hour at the \$300 rate plus the \$240 in filing fees. Sanctions are due within thirty (30) days after the hearing on these motions.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.